

Judicial Precedent - MCQs 101-150

101. The main value of London Street Tramways (1898) for modern precedent is that it:

- **A) Introduced horizontal precedent**
- **B) Ended CA independence**
- **C) Established absolute self-binding at the highest level before 1966**
- **D) Created ECtHR review**

Correct Answer: C

102. The Practice Statement 1966 was designed to:

- **A) Expand political discretion**
- **B) Restrict all innovation**
- **C) Repeal London Tramways**
- **D) Permit rare departure to correct injustice or adapt to change**

Correct Answer: D

103. The Practice Statement was first used in:

- **A) Herrington v BRB (1972) to update occupiers' liability**
- **B) Shivpuri (1986)**
- **C) Miliangos (1976)**
- **D) Austin (2010)**

Correct Answer: A

104. Miliangos demonstrated that:

- **A) Parliament must modernize currency law**
- **B) The Lords may innovate economically within limits of justice**
- **C) ECtHR governs trade cases**
- **D) Denning's theory succeeded**

Correct Answer: B

105. Shivpuri (1986) showed that precedent can evolve:

- A) Only by statute
- B) Via ECtHR intervention
- C) Through self-correction when clear error threatens coherence
- D) Through jury verdicts

Correct Answer: C

106. The Supreme Court's legitimacy in using the Practice Statement depends on:

- A) Ministerial consent
- B) ECtHR oversight
- C) Parliament's vote
- D) Maintaining rule-of-law values of certainty, fairness, and clarity

Correct Answer: D

107. Austin v Southwark (2010) reaffirmed:

- A) The Supreme Court inherited the same flexibility as the former HL
- B) Denning's theories
- C) The PS was repealed
- D) Strasbourg binds SC

Correct Answer: A

108. Willers v Joyce (2016) illustrated:

- A) EU supremacy
- B) The problem of dual judgments between JCPC and SC creating ambiguity
- C) Pure horizontal precedent
- D) Constitutional irrelevance

Correct Answer: B

109. The JCPC is generally persuasive because:

- A) It serves Commonwealth only
- B) It is above SC
- C) It lacks domestic jurisdiction except when SC expressly confirms binding effect
- D) ECtHR enforces its rulings

Correct Answer: C

110. Willers (No 2) resolved that:

- A) JCPC never binds
- B) CA decides its authority
- C) Parliament must approve
- D) JCPC may bind if expressly directed by SC

Correct Answer: D

111. Young v Bristol Aeroplane remains key because it:

- A) Created precise limits on when CA may overrule itself
- B) Gave CA total flexibility
- C) Introduced horizontal overruling
- D) Abolished hierarchy

Correct Answer: A

112. The Young exceptions are:

- A) Policy, fairness, equity
- B) Conflict, higher decision, or per incuriam
- C) Parliamentary guidance

- D) Public necessity

Correct Answer: B

113. Davis v Johnson reaffirmed that:

- A) ECtHR binds HL
- B) HL followed CA
- C) Denning's refusal to follow HL precedent breached constitutional order
- D) The PS was suspended

Correct Answer: C

114. Broome v Cassell confirmed:

- A) Denning's flexibility
- B) Strasbourg priority
- C) Criminal exceptions
- D) Lower courts must obey HL decisions even if considered wrong

Correct Answer: D

115. R v Gould (1968) recognized that in criminal law:

- A) The CA(Crim) may depart where liberty of the subject demands
- B) Liberty is secondary
- C) ECtHR decides fairness
- D) Juries bind CA

Correct Answer: A

116. The Divisional Court mirrors the CA because:

- A) Equal in hierarchy
- B) It applies the same Young exceptions to preserve consistency
- C) It is above SC

- D) Strasbourg directs it

Correct Answer: B

117. Ullah (2004) created the "mirror principle," meaning:

- A) ECtHR dominates UK law
- B) Parliament mirrors Strasbourg
- C) UK courts should follow clear Strasbourg precedent unless justified otherwise
- D) CA controls HRA

Correct Answer: C

118. Horncastle (2009) marked a shift because:

- A) It ignored Strasbourg
- B) ECtHR binds all
- C) Parliament ruled instead
- D) Domestic courts may refuse Strasbourg rulings to protect national standards

Correct Answer: D

119. Pinnock (2010) balanced Ullah and Horncastle by saying:

- A) Courts must take Strasbourg into account, not follow blindly
- B) Ignore Strasbourg
- C) Apply ECtHR strictly
- D) Parliament decides each conflict

Correct Answer: A

120. Chester (2013) and Hallam (2019) together show:

- A) Strasbourg control
- B) Domestic constitutional principles can outweigh ECtHR precedent

- C) ECtHR supremacy
- D) Judicial surrender

Correct Answer: B

121. Kay v Lambeth (2006) emphasized that:

- A) Strasbourg is supreme
- B) HRA repealed
- C) Lower courts must follow binding domestic precedent even if ECtHR differs
- D) JCPC equals ECtHR

Correct Answer: C

122. Per incuriam operates as:

- A) Appeal procedure
- B) Statutory rule
- C) Strasbourg doctrine
- D) Exception for decisions made in ignorance of relevant law

Correct Answer: D

123. Denning's "lapsed rule" theory was rejected because:

- A) It undermined predictability by allowing judges to discard precedent at will
- B) It supported fairness
- C) It harmonized law
- D) It aided Strasbourg

Correct Answer: A

124. The Doctrine of Hierarchy ensures:

- A) Flexibility for all

- **B) Lower courts follow higher ones to secure consistency**
- **C) Only CA binds itself**
- **D) ECtHR leads**

Correct Answer: B

125. Spectrum Plus (2005) explored:

- **A) Abolishing stare decisis**
- **B) Strasbourg alignment**
- **C) Prospective overruling to prevent unfair retroactive impact**
- **D) Criminal appeal reform**

Correct Answer: C

126. R v Kneller (1973) demonstrated:

- **A) Judicial activism**
- **B) Public pressure reforms**
- **C) ECtHR dominance**
- **D) Reluctance to overturn even mistaken precedent for stability**

Correct Answer: D

127. Hall v Simons (2000) modernized law by:

- **A) Abolishing advocates' immunity as inconsistent with fairness**
- **B) Restoring immunity**
- **C) Rejecting PS**
- **D) Overruling Strasbourg**

Correct Answer: A

128. Jones v SS for SS (1972) illustrates:

- **A) Denning's victory**

- B) The hierarchy principle — lower courts must follow even wrong HL rulings
- C) ECtHR enforcement
- D) Statutory repeal

Correct Answer: B

129. "Horizontal precedent" means:

- A) Lower follows higher
- B) JCPC control
- C) A court generally follows its own prior decisions
- D) Political review

Correct Answer: C

130. "Vertical precedent" ensures:

- A) Equal courts differ
- B) ECtHR commands
- C) Juries control appeal
- D) Lower courts follow higher ones in the same hierarchy

Correct Answer: D

131. Practice Statement 1966 transformed stare decisis by:

- A) Introducing limited judicial flexibility to correct injustice
- B) Removing hierarchy
- C) Codifying ECtHR power
- D) Transferring power to CA

Correct Answer: A

132. Miliangos and Shivpuri share that both:

- A) Involved criminal issues

- B) Applied PS to correct outdated or mistaken precedent
- C) Concerned ECtHR rulings
- D) Came from CA

Correct Answer: B

133. The Divisional Court's persuasive impact is important because:

- A) It binds Magistrates
- B) It directs Parliament
- C) Its appellate nature influences consistency across parallel benches
- D) It sets ECtHR standards

Correct Answer: C

134. Ullah principle maintains:

- A) Strasbourg supremacy
- B) Domestic autonomy only
- C) Rejection of HRA
- D) Judicial comity by aligning with ECtHR unless strong reasons exist

Correct Answer: D

135. Horncastle contributed to legal development by:

- A) Reinforcing that national standards can meet or exceed Strasbourg rights
- B) Banning hearsay
- C) Repealing Ullah
- D) Abolishing ECtHR

Correct Answer: A

136. Chester concerned:

- A) Judicial review limits

- B) Prisoner voting and constitutional hierarchy
- C) Trespass reform
- D) CA conflict

Correct Answer: B

137. Hallam built upon Chester by:

- A) Rejecting HRA
- B) Overruling Chester
- C) Confirming that UK courts need not follow Strasbourg against core constitutional values
- D) Adopting ECtHR fully

Correct Answer: C

138. Practice Statement 1966's constitutional importance is that it:

- A) Weakened stare decisis
- B) Ended precedent
- C) Reduced hierarchy
- D) Strengthened legitimacy by combining authority with reasoned evolution

Correct Answer: D

139. The per incuriam rule supports:

- A) Accuracy and accountability by excluding erroneous rulings
- B) Free judicial choice
- C) Political oversight
- D) ECtHR review

Correct Answer: A

140. Denning's "lapsed rule" was criticised because it:

- A) Favoured fairness
- B) Allowed subjective disregard of precedent undermining certainty
- C) Upheld hierarchy
- D) Respected Parliament

Correct Answer: B

141. The goal of precedent under rule of law is:

- A) Speedy change
- B) Uniform politics
- C) Stability with capacity for rational evolution
- D) Strict rigidity

Correct Answer: C

142. Kay, Pinnock, Chester, and Hallam together display:

- A) Subservience to Strasbourg
- B) Full ECtHR compliance
- C) Parliamentary silence
- D) Evolving dialogue balancing domestic autonomy and international respect

Correct Answer: D

143. Hall v Simons illustrated:

- A) Controlled law-making within legitimacy boundaries
- B) Judicial defiance
- C) Strasbourg influence
- D) HL submission

Correct Answer: A

144. R v Simpson reinforced that CA(Crim):

- A) Never departs
- B) Can depart if justice and liberty require
- C) ECtHR must approve
- D) CA(Civ) decides

Correct Answer: B

145. The HRA 1998 s.2 function in precedent is to:

- A) Bind UK to ECtHR
- B) Enforce Strasbourg law
- C) Require courts to consider ECtHR jurisprudence while preserving sovereignty
- D) Mandate compliance

Correct Answer: C

146. The constitutional foundation of hierarchy lies in:

- A) Judicial activism
- B) Political convenience
- C) Economic policy
- D) Predictability, equality, and respect for authority

Correct Answer: D

147. The rule of comity in precedent promotes:

- A) Mutual respect among coordinate courts to maintain coherence
- B) Rivalry
- C) Obedience to Parliament
- D) ECtHR supremacy

Correct Answer: A

148. Academic criticism of precedent often argues that it:

- **A) Enhances equality**
- **B) Becomes overly technical and restricts moral growth**
- **C) Empowers Parliament**
- **D) Simplifies law**

Correct Answer: B

149. Practice Statement 1966 in constitutional theory represents:

- **A) Judicial arrogance**
- **B) Political surrender**
- **C) Democratic maturity — judges acknowledging need for controlled self-correction**
- **D) Abandonment of law**

Correct Answer: C

150. In conclusion, Chapter 6 demonstrates that:

- **A) Precedent prevents progress**
- **B) ECtHR dominates all**
- **C) Parliament controls case law**
- **D) Judicial precedent sustains the rule of law by combining hierarchy, fairness, and adaptive reasoning**

Correct Answer: D

END OF QUESTIONS